

BEFORE THE STATE BOARD OF LICENSED PROFESSIONAL COUNSELOR
EXAMINERS

STATE OF COLORADO

Case No. RG PC DLOXE

STIPULATION AND FINAL AGENCY ORDER

IN THE MATTER OF DISCIPLINARY PROCEEDINGS REGARDING THE LICENSE
TO PRACTICE PROFESSIONAL COUNSELING IN THE STATE OF COLORADO OF
MICHAEL R. GISMONDI, LPC, LICENSE NO. 567,

RESPONDENT.

IT IS HEREBY STIPULATED by and between the State Board of Licensed
Professional Counselor Examiners (the "Board") and Michael R. Gismondi, LPC,
("Respondent") as follows:

1. The Board has jurisdiction over the person of Respondent and the subject matter of this Stipulation and Final Agency Order ("Order").
2. Respondent was licensed to practice as a professional counselor in the State of Colorado at all times relevant herein.
3. Respondent admits the following:
 - a. Respondent entered into a stipulation with the Board that was fully executed and became an Order of the Board on August 8, 1996.
 - b. Under the terms of the 1996 stipulation, agreed to a term of probation with monitoring for a period of at least three years and to complete 60 hours of continuing education in the areas of boundary/dual relationship issues and other legal/ ethical issues. Because Respondent has not completed 60 hours of approved education, Respondent's period of probation has not been completed.
 - c. Under the terms of the stipulation Respondent was to strictly observe the standards of practice and to assure that he does not engage in any activities that are prohibited activities or that fall below generally accepted standards of practice.
 - d. From August 1999 through May 2003, Respondent treated a client identified as JC for brain injury using psychotherapy and biofeedback. Respondent suggested

the use of a Roshi instrument to augment JC's treatment. Because Respondent did not have the funds for training on the machine, JC and Respondent entered into an agreement in December 2002 whereby JC loaned Respondent \$4500 for training and a workshop.

e. JC, prior to treatment with respondent, was unable to master academic studies and risked suspension from his MBA studies. His treatment with respondent assisted directly in his ability to succeed and complete his MBA.

f. During the course of the therapeutic relationship, JC suggested that he and Respondent enter into a business relationship for the treatment of brain injured people. Under the agreement, Respondent's treatment expertise would be used and JC would provide capital and business expertise. Respondent did not terminate such discussions, but instead entertained them. Partly because of the blurring of boundaries between treatment and business, conflicts began to arise between JC and Respondent that resulted in termination of business discussions before the plan came to fruition.

g. JC and Respondent terminated treatment approximately two months later, in May 2003. The final payment on the \$4500 loan was paid by Respondent in March 2004.

4. By virtue of the facts admitted in paragraph 3 above, the Board finds that Respondent violated §§ 12-43-222(1) (g), (i), and (j), C.R.S.

5. The statutory authority of the Board is as follows:

12-43-222. Prohibited activities – related provisions. (1) A person licensed, registered, or regulated under part 3, 4, 5, 6, or 7 of this article is in violation of this article if such person:

(g) Has acted or failed to act in a manner that does not meet the generally accepted standards of the professional discipline under which such person practices. A certified copy of a malpractice judgment of a court of competent jurisdiction shall be conclusive evidence of such act or omission, but evidence of such act or omission shall not be limited to a malpractice judgment.

(i) Has maintained relationships with clients that are likely to impair such person's professional judgment or increase the risk of client exploitation, such as treating employees, supervisees, close colleagues, or relatives;

(j) Has exercised undue influence on the client, including the promotion of the sale of services, goods, property, or drugs in such a manner as to exploit the client for the financial gain of the practitioner or a third party;

6. By virtue of the admissions in paragraph 3, Respondent agrees to the term of suspension and formal monitoring upon reinstatement by the Board to the extent the Board believes such monitoring is necessary to protect the public health, safety and welfare.

7. Respondent's license to practice is hereby suspended for a period of two (2) years, beginning upon the effective date of this Stipulation and Final Agency Order ("Order"). During the period of suspension, Respondent shall not engage in the practice of licensed professional counseling in Colorado and will not hold himself out as a licensed professional counselor in the State of Colorado.

8. If Respondent seeks reinstatement as a professional counselor licensed in Colorado upon completion of the period of suspension, Respondent will submit to a practice evaluation conducted by a Board approved mental health professional. The results of the evaluation will be submitted to the Board for consideration with Respondent's application for reinstatement. The practice evaluation shall examine all aspects of Respondent's proposed practice and his qualifications and ability to practice in accordance with generally accepted standards of practice, with skill and safety for clients and to determine whether he has the necessary qualifications, current ability, and competence to practice.

9. As part of this Order, Respondent agrees to provide access to his medical and psychological records and information and explicitly waives his right to maintain confidentiality of his medical and psychological records and information provided to the practice evaluator or practice monitor if the practice evaluator or practice monitor, determines that he is not practicing professional counseling or addiction counseling in accordance with generally accepted standards of practice or has any condition which renders him unable to treat clients with skill and safety or which may endanger the health or safety of persons under his care. This waiver only applies to material sent directly to the Board and the Board does not have authority to disseminate this information to any individual other than the Board's attorneys.

10. If Respondent is reinstated as a professional counselor licensed in Colorado, Respondent will be licensed subject to probation. Respondent agrees to practice under a term of probation as set out below and may not resume practice until a Board-approved practice monitor is in place.

11. Respondent's license to practice professional counseling in the State of Colorado will be on probationary status for a minimum of five (5) years commencing from the effective date of Respondent's reinstatement as a licensed professional counselor and until Respondent has complied with the terms and conditions of this Order. During the probationary period, Respondent agrees to be bound by the terms and restrictions set forth below.

12. During the term of probation, Respondent's practice will be monitored by a practice monitor. Prior to reinstatement of Respondent's license, Respondent shall nominate, in writing, three proposed practice monitors for the Board's approval. Respondent shall

include for consideration a current curriculum vita of each proposed monitor and a commitment letter stating that s/he has read this Order and understands and agrees to perform the obligations set forth herein. The practice monitor shall meet the following criteria:

- a. The practice monitor shall be a licensed, certified, or listed, currently practicing mental health provider in the State of Colorado or the State of New York and shall have no record of discipline.
- b. It is recommended that the practice monitor shall have a minimum of five years experience.
- c. The practice monitor shall have no current or past financial or personal interest in Respondent or Respondent's practice. This limitation excludes former employees and business associates.
- d. Respondent or the practice monitor may terminate the monitoring relationship on written notice to the other and the Board not less than 60 days before the date of termination. The notice shall state the reason for the termination. Respondent shall immediately initiate efforts to obtain another Board approved practice monitor, who shall conduct her/his monitoring and report to the Board in accordance with this Order.

13. Respondent agrees that the following terms and conditions shall apply with regard to the practice monitoring:

- a. After the Board's written approval of the practice monitor, Respondent and the practice monitor shall enter into a written contract for monitoring. The practice monitor shall provide a copy of the written contract to the Board as a part of his/her first report to the Board. The contract must contain a provision stating that the practice monitor has received a copy of this Order, of the complaint and responsive documents, and of the practice evaluation; has read these documents; and understands the duties and responsibilities s/he is undertaking as Respondent's practice monitor. The practice monitor shall assure that a written notification is provided to each client informing the client of the name, address, and telephone number of the practice monitor. This written notification may be provided in a mandatory disclosure statement.
- b. The practice monitoring shall consist of individual direct contact that occurs at least twice every month for one hour or such longer time as the practice monitor deems necessary. During the practice monitoring sessions, Respondent and his practice monitor must review and discuss each of Respondent's active cases at least once every month to allow the practice monitor to determine whether Respondent is practicing professional counseling in accordance with generally accepted standards of practice and with skill and safety for his clients.
- c. The practice monitor shall submit written reports to report the results of the practice monitoring. The practice monitor shall submit the written reports to the Board

on the fifth day of the first full month after the Board approves the practice monitor. All subsequent reports shall be submitted on the fifth day of each month for the first twelve reports. After the submission of the first twelve (12) reports, unless otherwise ordered by the Board, the practice monitor shall submit his/her reports by the fifth day of every third month (i.e. on a quarterly basis) until the practice monitoring is completed.

d. If at any time the Board has questions or concerns regarding the monitoring, the practice monitor agrees to attend any Board meeting necessary to address the Board's concerns. The Board will give the practice monitor thirty (30) days notice prior to requiring the practice monitor's attendance at the Board meeting.

e. If at any time the practice monitor believes Respondent is not in compliance with this Order, is unable to practice with skill and with safety to his patients or has committed a violation of the practice act or rules and regulations, the practice monitor shall immediately notify the Board in writing, with an explanation of the reasons for such a conclusion. A copy will be sent to Respondent. Upon submission of such a report, Respondent shall immediately cease the practice of professional counseling.

f. Respondent shall make efforts to assure that all reports by the practice monitor are complete and timely submitted to the Board. If, in the Board's judgment, the practice monitor fails to perform the function specified by this order, the Board may require a new practice monitor to assume responsibilities herein. If for any reason the practice monitor ceases to perform the functions specified in this Order, Respondent shall nominate a new practice monitor to the Board within thirty (30) days.

14. During the period of probation, Respondent must successfully complete at least 20 hours each year of Board-approved, professional continuing education courses in the areas of ethics, boundaries, and dual relationships. Respondent shall obtain Board approval of the courses prior to enrolling in each course. Upon completion of a course, the provider is to mail to the Board a certificate of completion.

15. The following terms and conditions apply to this Order:

a. Respondent will strictly observe the prohibitions set forth in § 12-43-222, C.R.S. and assure that he does not engage in any activities that are prohibited activities or fall below generally accepted standards of practice.

b. Respondent shall not supervise or consult with other mental health providers for the purpose of those persons providing psychotherapy, unless such supervision or consultation is monitored in accordance with this Order

c. All expenses associated with the practice evaluation, practice monitoring, education and any other expenses incurred in fulfilling the terms of this Order shall be borne by Respondent.

d. It is understood by the parties that respondent will fulfill the probation terms of this Order in the State of New York, and will be monitored there. In the event Respondent relocates to another state at any time during the probationary period, Respondent shall notify the Board of the change of address within 30 days of the effective date of such change.

e. The period of probation is tolled during any time that Respondent is not practicing, and such period of probation shall resume at such time as Respondent resumes practicing in accordance with this Order.

f. Credit towards the period of probation will be given only for the period of time during which Respondent is practicing as a licensed professional counselor, is being monitored by a practice monitor, and is in full compliance with all terms of this Order.

16. Respondent is fully aware of and understands the right to receive a formal notice of hearing and charges and to have a formal disciplinary hearing, pursuant to § 12-43-224, C.R.S., and hereby waives those rights. Further, Respondent also acknowledges this waiver constitutes a waiver of all rights to appeal in this matter.

17. This Order is entered into by Respondent voluntarily and without coercion, after an opportunity to consult with counsel and with full understanding of the legal consequences of this Order and the right to formal hearing on all matters herein.

18. This Order of the Board entered pursuant to Stipulation shall constitute a Board order for purposes of § 12-43-222, C.R.S. and shall have the same force and effect as an order entered after a formal disciplinary hearing pursuant to § 12-43-224, C.R.S.

19. This Order shall become effective when accepted and signed on behalf of the Board.

20. This Order shall be a public record at all times in the custody of the Board.

RESPONDENT



Michael R. Gismondi, LPC

**COLORADO STATE BOARD OF
LICENSED PROFESSIONAL
COUNSELOR EXAMINERS**



Cindy Musil, Board Chair

Effective Date: This ~~14th~~ ^{21st} day of

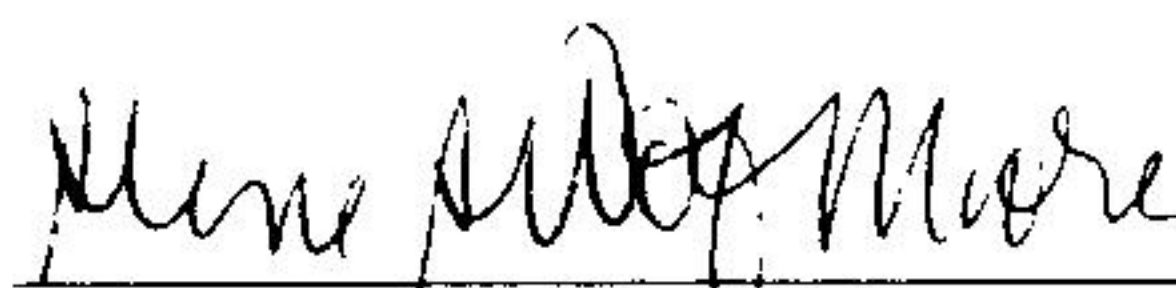
September 2005.

APPROVED AS TO FORM

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